

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Lai	Team: Team # 1	CCRB Case #: 201012265	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 08/31/2010 2:30 PM	Location of Incident: 8th Avenue and 60th Street, and at the 66th Precinct stationhouse.	18 Mo. SOL 2/29/2012	Precinct: 72		
Date/Time CV Reported Thu, 09/02/2010 11:08 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/08/2010 1:47 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. Officers			
3. SGT Michael Healy	01394	911523	NARCBBS
4. DT3 Christophe Greiner	01425	930271	NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Sean Cyrus	01493	936416	NARCBBS
2. DT3 Robert Negron	04986	927265	NARCBBS
3. DT2 Matthew Delrosario	00461	901436	NARCBBS
4. DT3 Alberto Angilletta	07001	917233	NARCBBS
5. DT3 Paul Farella	00193	926935	NARCBBS
6. DT3 Degny Lugo	04302	935212	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . SGT Michael Healy	Abuse: At 8th Avenue and 60th Street in Brooklyn, Sgt. Michael Healy authorized the stop of § 87(2)(b) and an individual.	A . Unsubstantiated
B . SGT Michael Healy	Discourtesy: At 8th Avenue and 60th Street in Brooklyn, Sgt. Michael Healy spoke obscenely and rudely to § 87(2)(b)	B . Unsubstantiated
C . DT3 Christophe Greiner	Abuse: At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner searched § 87(2)(b)	C . Unsubstantiated
D . DT3 Christophe Greiner	Force: At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner used a chokehold against § 87(2)(b)	D . Unsubstantiated
E . Officers	Abuse: At 8th Avenue and 60th Street in Brooklyn, officers searched § 87(2)(b) and an individual.	E . Victim Unidentified
F . DT3 Christophe Greiner	Discourtesy: At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner spoke obscenely and rudely to § 87(2)(b)	F . Unsubstantiated
G . DT3 Christophe Greiner	Force: At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner used physical force against § 87(2)(b)	G . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
H . An officer	Discourtesy: At the 66th Precinct stationhouse, an officer spoke obscenely and rudely to § 87(2)(b)	H . Officer(s) Unidentified
I . An officer	Abuse: At the 66th Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force.	I . Officer(s) Unidentified
J . SGT Michael Healy	Abuse: Sgt. Michael Healy authorized the strip-search of § 87(2)(b)	J . Exonerated

Case Summary

§ 87(2)(b) filed a complaint on behalf of her son, § 87(2)(b) with IAB on September 2, 2010, generating referral number 10-44292. Her complaint was sent to the CCRB, where it was received on September 8, 2010.

On August 31, 2010, at approximately 2:30pm, § 87(2)(b) along with his friend, § 87(2)(b) and an unidentified male who was § 87(2)(b)'s friend, parked in front of a fire hydrant near the intersection of 8th Avenue and 60th Street in Brooklyn. Sgt. Michael Healy and Det. Christopher Greiner of Narcotics Borough Brooklyn South approached § 87(2)(b). Their subsequent interaction resulted in the following allegations.

- **Allegation A: Abuse of Authority** - At 8th Avenue and 60th Street in Brooklyn, Sgt. Michael Healy authorized the stop of § 87(2)(b) and an individual. § 87(2)(g) it is recommended that **Allegation A** be closed as **Unsubstantiated**.
- **Allegation B: Discourtesy** - At 8th Avenue and 60th Street in Brooklyn, Sgt. Michael Healy spoke obscenely and rudely to § 87(2)(b).
- **Allegation C: Abuse of Authority** – At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner searched § 87(2)(b).
- **Allegation D: Force** - At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner used a chokehold against § 87(2)(b). § 87(2)(g) it is recommended that **Allegations B, C, and D** be closed as **Unsubstantiated**.
- **Allegation E: Abuse of Authority** – At 8th Avenue and 60th Street in Brooklyn, officers searched § 87(2)(b) and an individual. § 87(2)(g) it is recommended that **Allegation E** be closed as **Victims Unidentified**.
- **Allegation F: Discourtesy** - At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner spoke obscenely and rudely to § 87(2)(b).
- **Allegation G: Force** - At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner used physical force against § 87(2)(b). § 87(2)(g) it is recommended that **Allegations F and G** be closed as **Unsubstantiated**.
- **Allegation H: Discourtesy** – At the 66th Precinct stationhouse, an officer spoke obscenely and rudely to § 87(2)(b).
- **Allegation I: Abuse of Authority** – At the 66th Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force. § 87(2)(g) it is recommended that **Allegations H and I** be closed as **Officer Unidentified**.

- **Allegation J: Abuse of Authority** – At the 66th Precinct stationhouse, Sgt. Michael Healy authorized the strip-search of § 87(2)(b) § 87(2)(g) it is recommended that **Allegation J** be closed as **Exonerated**.

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

Inv. Lai contacted § 87(2)(b) over the phone on September 10, 2010 (encl. E1). § 87(2)(g)

On August 31, 2010, § 87(2)(b) received a phone call from § 87(2)(b)'s friend, "§ 87(2)(b) who said that § 87(2)(b) and his two friends were approached by plainclothes officers, who dropped § 87(2)(b)'s pants in the middle of the street, went into his "private parts," punched him in the face, and arrested him. In her initial complaint, § 87(2)(b) stated that she received a voicemail from § 87(2)(b) after his arrest. The message stated that officers approached § 87(2)(b) for smoking marijuana and they pulled him by the hair, choked him, stripped him, threw him to the ground, and put their hands in his buttocks. § 87(2)(b) also said in her initial complaint that § 87(2)(b) had bruises on his chest and ribs, but it is unclear how she discovered this.

Approximately three hours later, § 87(2)(b) went to a stationhouse near Hicks Street, which was confirmed as the 76th Precinct stationhouse, and spoke with an officer. The officer stated that § 87(2)(b) was found smoking marijuana, officers searched him, and he was arrested because he was selling dope or heroin.

On September 4, § 87(2)(b) spoke with § 87(2)(b) at Riker's Island. § 87(2)(b) stated that on the date of the incident, he was standing with two friends by a car when officers grabbed him, searched him, and threw him onto the ground. Officers pulled his hair and choked him using a headlock. His pants were pulled down, where drugs were found in his buttocks. It was at that point that an officer continued searching further into that area to find more drugs. § 87(2)(b) denied smoking marijuana at the time the officers approached, but admitted to having smoked marijuana two hours prior. § 87(2)(b) saw scratches on § 87(2)(b)'s forehead, and § 87(2)(b) complained of wrist pain from his being handcuffed. Some time after his arrest, § 87(2)(b) declined medical attention.

Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b)-old Hispanic male who § 87(2)(b) has black hair and brown eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at the § 87(2)(b) at the Rikers Island Correctional Facility on November 4, 2010 (encl E2-7).

On August 31, 2010, at approximately 1:50pm, § 87(2)(b) was window-shopping with his friends “§ 87(2)(b)” “§ 87(2)(b)” and “§ 87(2)(b)” at 5th Avenue and 55th Street in Brooklyn. § 87(2)(b) wore a blue-and-grey baseball cap, a white t-shirt, blue shorts, and blue sneakers. He had a cell phone, keys, and his ID in his pockets, and had approximately 2 grams of heroin in bundles of white plastic bags in his underwear lining. § 87(2)(b) initially had said that he had the heroin “in [his] rectum area,” but upon later questioning, he said that it was in his underwear lining.

After approximately 20 minutes, his friend, who he only knew by his tag name as § 87(2)(b) picked him up in a white Nissan 4-door sedan. § 87(2)(b) and § 87(2)(b) did not accompany him. § 87(2)(b)'s friend, whom § 87(2)(b) did not know, was also present. He did not recall what § 87(2)(b) and his friend wore or possessed on their person that day. He did not know § 87(2)(b)'s or his friend's contact information; he did not specify how he coordinated § 87(2)(b) to pick him up. § 87(2)(b) and § 87(2)(b)'s friend went to a nearby Sears store for approximately 20 minutes and returned to the car, which was parked in the parking lot. § 87(2)(b) bought tank-tops, held in 2-3 plastic shopping bags that were placed in the backseat.

They drove and parked in front of a fire hydrant and a “Chinese [convenience] store” located at 8th Avenue and 60th Street. During the time after § 87(2)(b) and his friend had left the Sears store and before they parked in front of the convenience store, they did not stop anywhere or interact with anyone else. § 87(2)(b) who was the driver, and § 87(2)(b)'s friend, who sat in the front passenger seat, exited the car and walked towards the convenience store. § 87(2)(b) remained inside the car, sitting in the rear passenger seat.

Less than one minute after the two walked toward the store, an unmarked black sedan pulled up and 3-4 plainclothes officers exited and approached the two individuals. An officer, identified by the investigation as Det. Matthew Del Rosario of Narcotics Borough Brooklyn South, was described as a white male, 5'4”, stocky, 35-40 years old, with spiky black hair, wearing sunglasses and a blue-collared shirt. He did not state if he saw where Det. Del Rosario was seated. § 87(2)(b) did not recall detailed descriptions of the other plainclothes officers except that they were white males. Almost immediately after the unmarked sedan pulled up, an unmarked black or dark blue van pulled up as well, with two plainclothes officers exiting. § 87(2)(b) stated that there may have been more officers that exited the van but he was unsure and he did not state where the officers were seated. One of the officers from the unmarked van, identified by the investigation as Sgt. Michael Healy of Narcotics Borough Brooklyn South, was described as a white male, 5'4”, average build, 39-40 years old, with short blond hair, acne on his face, a tattoo on his left arm, wearing a grey or black t-shirt. The other officer from the unmarked van, PO3, was described as a Hispanic male, 6'1”, husky, 31 years old, with a goatee, wearing a white shirt with a logo on it that § 87(2)(b) did not recall; § 87(2)(b) did not describe PO3's hair style or color, if any. Sgt. Healy opened the rear passenger door and grabbed § 87(2)(b)'s shirt in the right chest area and pulled to get him out of the car. § 87(2)(b) was scared when Sgt. Healy opened the door and he raised his opened hands up as the officer grabbed him; § 87(2)(b) did not mention where his hands were prior to this. During this time, Det. Del Rosario and other plainclothes officers approached § 87(2)(b) and his friend outside in front of the store, and grabbed their shirt collars to bring them toward the unmarked sedan. § 87(2)(b) did not know if § 87(2)(b) and his friend had entered the store prior to officers approaching them.

After § 87(2)(b) exited the car, Sgt. Healy told him to place his hands behind his back. When § 87(2)(b) asked why he was being arrested, Sgt. Healy said, “Shut the fuck up.” Sgt. Healy handcuffed § 87(2)(b) and placed him face-first against the car. Sgt. Healy asked § 87(2)(b) if

he “had anything on [him],” why the car smelled of marijuana, and if he possessed marijuana on his person. § 87(2)(b) denied having marijuana or anything else and he did not know why Sgt. Healy smelled marijuana. § 87(2)(b) explained to Sgt. Healy that § 87(2)(b) or § 87(2)(b)’s friend may have smoked marijuana before he met them.

Sgt. Healy patted § 87(2)(b)’s waist and legs, and placed his hands into § 87(2)(b)’s pockets, removing § 87(2)(b)’s money, phone, keys, and ID and placing them on top of the car. Immediately afterwards, an officer identified via investigation as Det. Christopher Greiner of Narcotics Borough Brooklyn South, grabbed § 87(2)(b)’s waistband and shook it to see if anything would fall out. Det. Greiner was described as a white male, 5’6”, husky, 29 years old, with short blond or brown hair, wearing a tight white muscle shirt with jeans. § 87(2)(b) did not mention where Det. Greiner had come from prior to seeing him. Det. Greiner then pulled § 87(2)(b)’s front waistband horizontally away from § 87(2)(b)’s body, extending it so that Det. Greiner could see § 87(2)(b)’s genitals. Det. Greiner then extended § 87(2)(b)’s rear waistband horizontally and away from § 87(2)(b)’s body so Det. Greiner could see his buttocks. While holding the waistband with one hand, Det. Greiner reached in § 87(2)(b)’s pants, with two fingers touching and swiping between the bare-skin of § 87(2)(b)’s buttocks.

When Det. Greiner attempted to touch further down between § 87(2)(b)’s buttocks, § 87(2)(b) jumped up and began twisting his body, repeatedly screaming, “That’s gay,” and saying that he did not have anything in that area. § 87(2)(b) “panicked,” was angry and continued to move his body to prevent Det. Greiner from touching between his buttocks. The two officers told him, “You’re an animal. Calm down. If you ain’t got nothing, don’t worry about it.” Det. Greiner pushed § 87(2)(b) against the car, with one hand holding onto § 87(2)(b)’s hair to prevent him from moving. PO3 was standing next to and observing Det. Greiner and § 87(2)(b). In the midst of § 87(2)(b) jumping and twisting his body to resist Det. Greiner from touching him further, Det. Greiner placed him into a headlock with Det. Greiner’s right arm wrapped around § 87(2)(b)’s neck. § 87(2)(b)’s head was brought down with his torso parallel to the ground. Det. Greiner held onto § 87(2)(b) in this manner for approximately 30 seconds, and § 87(2)(b) began to choke and his vision became blurry. Det. Greiner was no longer attempting to search § 87(2)(b) during these actions. § 87(2)(b) overheard a male officer say, “Don’t kill the kid,” but did not see who made that remark. Sgt. Healy separated Det. Greiner from § 87(2)(b) by pushing Det. Greiner away from him, and § 87(2)(b) was placed in the rear of the unmarked sedan.

§ 87(2)(b) could not see what happened to § 87(2)(b) and his friend approximately 15 feet away from him during this time, other than seeing officers with them. However, § 87(2)(b) spoke to them over the telephone while in Rikers, and was informed that officers also extended their waistbands and touched between their buttocks.

Det. Greiner sat to § 87(2)(b)’s right in the backseat, then grabbed the back of § 87(2)(b)’s neck and pushed his head against the back of the driver seat headrest. While doing so, Det. Greiner said, “Stop acting like a fucking animal.” § 87(2)(b) was not doing or saying anything prior to Det. Greiner doing this and did not know why Det. Greiner acted in this manner. There were no other officers inside the car, but § 87(2)(b) did not state whether any doors were open. When § 87(2)(b)’s face was pressed against the headrest, § 87(2)(b) tried to move his neck away from Det. Greiner’s grip while telling him to “get off [his] neck” because he could not breathe. Det. Greiner continued to press and punched § 87(2)(b)’s right side rib twice to calm him down. § 87(2)(b) who was “pissed off” and “irate,” said to Det. Greiner that he

“punch[ed] like a little bitch” and that he “hit like a little girl.” Det. Greiner then punched § 87(2)(b) in the same area three more times.

Two to three minutes later, a truck that resembled an ambulance or a vehicle used by “SWAT” arrived on the scene. The truck was black and had an NYPD logo on the side, with officers in black uniforms wearing vests, Tasers, and gloves exiting the truck.

A plainclothes officer, PO5, stood outside and spoke to § 87(2)(b) through the opened window of the rear passenger seat, asking § 87(2)(b) what was going on. PO5 was described as a white male, 5’6” to 5’7”, chubby, in his 30s, bald, with a blond goatee, wearing a black baggy shirt. Det. Greiner remained in the rear passenger seat while Det. Del Rosario entered and sat in the front passenger seat. § 87(2)(b) told PO5 that officers were trying to get into his rectum area because the officers thought he had something there. PO5 asked him if he had something in that area, and he said no.

PO5 asked § 87(2)(b) if he wanted to go to the hospital with “[those] guys,” referring to the black-uniformed officers that came from the “SWAT” truck. PO5 said that if § 87(2)(b) went with those officers that it would “be worse.” PO5 said that if § 87(2)(b) said yes, those officers would “tie [him] down, and...dig into [his] rectum area.” PO5 followed, “But if you come with us and give us whatever you have, what you’re hiding, [then] everything is going to be fine,” and asked § 87(2)(b) if he still wanted to go with those officers. § 87(2)(b) believed that PO5 was trying to deceive or intimidate him into not going to the hospital, and said that he wanted to go with those officers to the hospital. PO5 and all the other plainclothes officers walked a few feet away and “huddled” together. § 87(2)(b) could not hear what they spoke about. Sgt. Healy sat in the driver seat, Det. Del Rosario sat in the front passenger seat, and Det. Greiner sat next to § 87(2)(b) in the rear passenger seat. They left the area approximately 10 minutes after being initially approached, and § 87(2)(b) later discovered (over the telephone while he was incarcerated) that § 87(2)(b) and his friend were allowed to leave.

The officers and § 87(2)(b) arrived in the rear parking lot of the 66th Precinct stationhouse between 5pm and 6pm; he did not explain how he knew which stationhouse it was. The same black van from earlier and another large “work truck” arrived shortly thereafter; he did not see where the “SWAT” truck went. All the officers from the unmarked patrol car, the van, and the work truck exited and “huddled” together while § 87(2)(b) remained alone in the car. After one minute, Det. Del Rosario brought § 87(2)(b) out of the car and asked him, “Do you have anything on you?” § 87(2)(b) repeatedly denied having anything, and Det. Del Rosario said, “Are you sure? Because if we take you in the Precinct, we’re gonna strip search you, and if we find anything, you’re gonna be in big trouble.” Still outside in the rear parking lot of the stationhouse, a plainclothes officer amongst the group of officers, PO6, walked up to § 87(2)(b) and said, “You better not be bullshitting me, because I’ll fucking mace you right here.” PO6 was described as a white male, 6’1”, 30-36 years old, husky, with a Caesar hairstyle and a large nose. § 87(2)(b) was unsure if PO6 was present at his arrest, and he did not see where PO6 came from. § 87(2)(b) overheard an officer within the group say, “I think he’s bullshitting you. He’s bullshitting you.” PO6 grabbed § 87(2)(b)’s front shirt collar with one hand while taking out (from an unspecified area on his person) and pointing his OC spray toward § 87(2)(b)’s face. § 87(2)(b) became scared and, while handcuffed, reached into the rear of his underwear lining and “tugged” and “shifted” to have the 2 grams of heroin drop onto the ground. The officers subsequently “clapped and applauded.”

§ 87(2)(b) was brought into the stationhouse and was strip-searched. A plainclothes officer, PO7, instructed him to remove his clothing but did not physically touch him. There were no other officers or civilians present while the strip search was conducted. PO7 was described as a Hispanic or white male, 5'6" to 5'7", in his 30s, slim, with spiky hair and a black moustache. § 87(2)(b) did not see PO7 present anywhere else prior to being strip searched.

He was transported to what he believed was the 71st Precinct stationhouse (the investigation determined that he was taken to the 76th Precinct stationhouse) and then PO7 transported him to Central Booking, where a medical team asked if he needed medical attention. § 87(2)(b) felt intimidated and scared that "they would put another charge on [him]" if he said yes, since PO7 stood next to him as he was asked, and therefore declined medical attention.

The undersigned investigator left messages for § 87(2)(b) over the telephone on June 7, June 10, and July 26, 2011 to schedule an appointment for a photo viewing. As per Department of Corrections, § 87(2)(b) was not incarcerated during those contact attempts. A letter requesting for § 87(2)(b) to call and schedule an appointment for a photo viewing was also sent on July 26. As of the date of this report, § 87(2)(b) has not responded.

Attempts to Identify and Contact Civilians

Neither § 87(2)(b) nor § 87(2)(b) provide the names or contact information of § 87(2)(b) or his friend. Police records acquired, such as officer memo books and the precinct of occurrence's Stop, Question, and Frisk Log, have not shown any information regarding the identities or the involvement of those two individuals.

NYPD Statements:

Subject Officer: DET. CHRISTOPHER GREINER

Det. Greiner is a § 87(2)(b)-old white male who § 87(2)(b), and has brown hair and brown eyes. On August 31, 2010, he was on-duty from 12:27pm to 9:08pm, assigned to narcotics enforcement with Det. Cyrus in an unmarked black minivan.

Memo Book

On August 31, 2010, at 2:30pm, § 87(2)(b) was under arrest at the corner of 8th Avenue and 60th Street. At 2:45pm, Det. Greiner was en route to the 66th Precinct stationhouse and arrived there at 2:50pm (encl F1-2).

CCRB Testimony

Det. Greiner was interviewed at the CCRB on February 25, 2011 (encl. F3-5)

On August 31, 2010, Det. Greiner was driving an unmarked black minivan, with Sgt. Michael Healy sitting in the front passenger seat and Det. Robert Negron in the rear passenger seat. As they drove near the intersection of 64th Street and 8th Avenue, Det. Greiner smelled marijuana and then saw smoke emanating from the rear passenger window of a car in front of them. There were two unidentified males in the front of the car and an individual later identified as § 87(2)(b) sitting in the back. Det. Greiner followed the car, wanting to stop the car, but their vehicle did not have turret lights. The car ultimately parked in front of a fire hydrant, and Det. Greiner parked approximately one car length behind to initiate a vehicle stop.

Det. Greiner and Sgt. Healy exited their vehicle and approached the car after § 87(2)(b) exited his car and flicked an object resembling a cigarette onto the street (he did not describe further details of this object). Det. Greiner did not recall what Det. Negron or the two males in the front seats were doing at this time. As § 87(2)(b) walked away from his car in an unknown direction, Det. Greiner, who was approximately one car length away from him, said, “Police.” § 87(2)(b) who had his back towards Det. Greiner, turned to look, then immediately started to run, but Det. Greiner caught up to him within a few steps and grabbed his upper arm. Sgt. Healy, who had run to retrieve the object that § 87(2)(b) had flicked onto the street, said to Det. Greiner that the object contained marijuana. § 87(2)(b) tried to run and get away from Det. Greiner but did not attempt to strike him or any officer. Det. Greiner grabbed § 87(2)(b)’s arm to place it behind his back but § 87(2)(b) continued to struggle. At some point he wrapped his arm around § 87(2)(b)’s waist to prevent him from running as well, but affirmed that these were the only parts of § 87(2)(b)’s body that he touched. Sgt. Healy assisted by grabbing § 87(2)(b)’s other arm and both officers successfully handcuffed him on the street within one minute. Det. Greiner denied wrapping his arm around § 87(2)(b)’s neck in a chokehold or a headlock, and denied seeing any officer doing the same. After § 87(2)(b) was handcuffed, Det. Greiner frisked his waistband and pockets for any weapons but did not search him and did not recover any objects. He did not see any other officer frisk or search him, noting that “there was no way to search § 87(2)(b) through his behavior.”

During this time, § 87(2)(b) said to the officers, “Fuck you guys...You’re fucking assholes...I didn’t do anything...Fuck you.” Sgt. Healy and Det. Greiner did not respond to § 87(2)(b)’s remarks, other than Det. Greiner telling § 87(2)(b) that he was smoking marijuana.

§ 87(2)(b) who was still attempting to flee while handcuffed after he was frisked, was placed against the side of the car from which he exited, with Det. Greiner’s hands on § 87(2)(b)’s shoulders. Det. Greiner still did not recall the whereabouts of the two other males or of Det. Negron. Vehicle 3024, a black Toyota Camry, driven by Det. Del Rosario and Det. Cyrus, arrived, and § 87(2)(b) was placed in its rear passenger seat. While alone inside the vehicle, § 87(2)(b) kicked the windows and doors as he lay on his back, and Sgt. Healy requested ESU to respond to the location, but Det. Greiner did not recall if they appeared. Immediately before leaving, Det. Del Rosario and Det. Cyrus sat in the front seats of vehicle 3024 while § 87(2)(b) and Det. Greiner sat in the rear. § 87(2)(b) now sitting upright, continued to kick the car door and seats, and Det. Greiner had his left hand extended and touching § 87(2)(b)’s right shoulder, pushing him away in order to prevent being kicked. § 87(2)(b) made statements to the effect of, “Fuck you guys...I didn’t do anything...This is bullshit.” Det. Greiner, who believed § 87(2)(b) was going to strike him, told him, “Relax. It’s over.” Det. Greiner denied punching § 87(2)(b) while he was inside the vehicle with him, and he denied seeing any officer strike him.

Det. Del Rosario, Det. Cyrus, and Det. Greiner transported § 87(2)(b) in vehicle 3024 while Sgt. Healy and Det. Negron drove the unmarked black minivan to the 66th Precinct stationhouse. He did not explain why he went to this stationhouse. Det. Greiner did not recall if other police units accompanied them, but stated that his team’s prisoner van, driven by Det. Angilleta and Det. Farella, met them at the stationhouse.

After they exited the vehicle and were outside the parking lot of the stationhouse, § 87(2)(b) who had calmed down, informed Det. Greiner that he had “something on [him].” When Det. Greiner asked him what and where it was, § 87(2)(b) said “it” was in the waistband of his underwear. While still in the parking lot, Det. Greiner searched § 87(2)(b)’s underwear

waistband and pulled out several bundles of heroin within a plastic bag. He immediately informed Det. Cyrus, who, along with Det. Del Rosario, was present during the search. After the heroin was given to Det. Cyrus, Det. Angilletta and Det. Farella brought § 87(2)(b) into the stationhouse while Det. Greiner remained outside. He searched the backseat of the vehicle that transported § 87(2)(b) to check for more contraband but found none. He did not recall if there were other officers present with him, and only left after Sgt. Healy met up with him outside. He did not enter the stationhouse and he did not recall if § 87(2)(b) was strip-searched.

Det. Greiner denied that an officer threatened to use OC spray against § 87(2)(b) and he denied doing so himself. Det. Greiner did not recall using any profanity during this incident, and he denied saying the word, “fuck” or “bullshit” to § 87(2)(b). He denied making statements to the effect of, “Shut the fuck up,” “Stop acting like a fucking animal,” or “You better not be bullshitting me...I’ll fucking mace you.”

Subject Officer: SGT. MICHAEL HEALY

Sgt. Healy is a § 87(2)(b)-old white male who § 87(2)(b) has brown hair and brown eyes. On August 31, 2010, he was on-duty from 11:25am to 8:00pm, assigned as the narcotics supervisor with Det. Cyrus, Det. Greiner, and Det. Negrón in plainclothes and in an unmarked grey minivan.

Memo Book

On August 31, 2010, at 2:30pm, Sgt. Healy reported one 10-12 (police officer security holding suspect) at 60th Street and 8th Avenue for § 87(2)(b). ESU was requested for an EDP prisoner. At 2:42pm, ESU arrived on scene to escort the officers and the prisoner to the 66th Precinct stationhouse. At 2:50pm, at the 66th Precinct stationhouse, a search incident to arrest found the defendant in possession of 5 bundles of heroin (encl F6-8).

CCRB Testimony

Sgt. Healy was interviewed at the CCRB on January 21, 2011 (encl F9-11). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Sgt. Healy, along with Det. Greiner and Det. Negrón, parked their minivan on the sidewalk at 8th Avenue and 60th Street and then saw a white four-door jeep parked in front of them. Det. Negrón was the minivan’s operator. The smell of marijuana emanated from the opened windows of the jeep, which was parked in front of a fire hydrant, although Sgt. Healy did not see anyone smoking marijuana.

Inside the minivan, Sgt. Healy instructed Det. Greiner and Det. Negrón to follow the two unidentified males into the store while he approached § 87(2)(b) to see what they were doing. Det. Greiner followed the two males towards the store and Sgt. Healy exited about 15 seconds afterwards; Det. Negrón remained in the driver’s seat. As Det. Greiner passed the jeep, § 87(2)(b) exited, threw “a zip[lock bag of] marijuana into the backseat,” and began to exit the vehicle.

Sgt. Healy said to § 87(2)(b) “Excuse me, come here, I want to talk to you,” and § 87(2)(b) tried to run. Before he could run away, Sgt. Healy grabbed § 87(2)(b)’s arm and § 87(2)(b) turned to face him, then swung his arm at him. Sgt. Healy attempted to handcuff § 87(2)(b) who was trying to escape, and Det. Greiner ran back and assisted. Both officers restrained § 87(2)(b).

§ 87(2)(b)'s arms and attempted to place them behind his back. § 87(2)(b) continued to be combative by twisting his body, thrashing with his head, swinging his arms, and attempting to kick and bite the officers. The physical exchange, which lasted approximately 3-4 minutes, occurred interchangeably on the street, behind the jeep, and on the sidewalk because § 87(2)(b) continued to resist arrest and flee from the officers.

Because § 87(2)(b) was combative, irrational, and attempting to flee, Sgt. Healy called ESU to respond to the location, and he, along with Det. Greiner, stood with § 87(2)(b) outside the jeep until they arrived. Sgt. Healy and Det. Greiner conducted a quick pat-down of § 87(2)(b)'s person and he did not recall placing his hands into § 87(2)(b)'s pockets or removing any items. Sgt. Healy denied extending or pulling § 87(2)(b)'s waistband or seeing Det. Greiner do so. During the time ESU was en route, Sgt. Healy pointed out to the other officers who he did not recall that § 87(2)(b) had thrown marijuana into the jeep, and the vehicle was searched. Sgt. Healy did not recall which officer conducted the search and recovered it.

Det. Cyrus arrived at the location in an unmarked car. Det. Cyrus observed the scene and may have been involved with the handcuffing of the two unidentified males, but Sgt. Healy was unsure because he was preoccupied with § 87(2)(b). Det. Cyrus did not assist Sgt. Healy with § 87(2)(b).

ESU arrived approximately 10 minutes later, and § 87(2)(b) immediately calmed down for the remainder of the incident. Sgt. Healy spoke to an ESU officer and requested that ESU, as a safety precaution, escort them as they transported § 87(2)(b) to the 66th Precinct stationhouse to be searched. Sgt. Healy then spoke with the two unidentified males, who were handcuffed by unspecified officers for the officers' safety. Sgt. Healy did not recall what they spoke about, other than the males asking him if they were under arrest, and his replying no. Sgt. Healy stated that the two males did not individually behave in a manner that made him fear for his safety. However, he affirmed that in combination with § 87(2)(b)'s violent behavior, the officers' not knowing the contents of the jeep and his experience that "friends" of those arrested often interfere were reasons to have the two males handcuffed.

§ 87(2)(b) had been standing outside prior to being placed in Det. Cyrus' car, and he was not in another vehicle at any other point.

Sgt. Healy and Det. Negron, in their minivan, the ESU truck, and § 87(2)(b) in Det. Cyrus' patrol car went to the 66th Precinct stationhouse. Sgt. Healy did not recall any other units that responded or followed them to the stationhouse. The car transporting § 87(2)(b) and the ESU truck parked in the rear parking lot while Sgt. Healy parked in front of the stationhouse. Sgt. Healy did not go to the parking lot and denied speaking to § 87(2)(b).

§ 87(2)(b) appeared calm when he was brought into the stationhouse. Based on § 87(2)(b)'s physical behavior when he was handcuffed, Sgt. Healy authorized the strip search of § 87(2)(b) which resulted in the finding of 5 bundles (containing approximately 50 glassines) of heroin, but he did not know where on § 87(2)(b)'s person the heroin was recovered. A member of Sgt. Healy's team who he did not recall conducted the strip search, and he was not present when it was conducted.

Sgt. Healy denied using profanity, including the words the word "fuck" or "bullshit", and denied hearing any officer using profanity.

Subject Officer: DET. ROBERT NEGRON

Det. Negrón is a § 87(2)(b)-old Hispanic male who § 87(2)(b) is bald and has brown eyes. On August 31, 2010, he was on-duty from 12:27pm to 9:00pm, assigned to narcotics enforcement with Sgt. Healy in plainclothes and in an unmarked black Dodge Caravan # 7305.

Memo Book

On August 31, 2010, at 2:30pm, § 87(2)(b) was under arrest at 60th Street and 8th Avenue for PL 221.10. At 2:50pm, Det. Negrón arrived at the 66th Precinct stationhouse in regards to the prisoner. Fifty glassines of heroin were recovered from § 87(2)(b). At 3:00pm, Det. Negrón resumed patrol (encl F12-14).

CCRB Testimony

Det. Negrón was interviewed at the CCRB on February 17, 2011 (encl F15-16). § 87(2)(g)

Det. Negrón was the operator of a black Dodge Caravan with Sgt. Healy and Det. Greiner as occupants near the intersection of 9th Avenue and 60th Street. They received a call over the radio of males inside a vehicle smoking marijuana in the vicinity of 8th Avenue and 60th Street. Det. Negrón stated that a description of the vehicle was given but he did not recall it. No physical descriptions of the males were given.

Det. Negrón parked approximately 15-20 car lengths behind the vehicle, which was parked in front of a fire hydrant. Sgt. Healy and Det. Greiner exited the van and approached § 87(2)(b) to continue their investigation as Det. Negrón remained inside the vehicle.

Upon their approach on the street, § 87(2)(b) punched Sgt. Healy's face once with a closed fist and attempted to flee. Det. Negrón was unable to see if § 87(2)(b) had any object in his hands prior to this. Sgt. Healy grabbed § 87(2)(b)'s arms to prevent him from leaving and to restrain him. § 87(2)(b) continued to struggle, swinging his arms and kicking at the officers' legs. Det. Greiner assisted Sgt. Healy by grabbing § 87(2)(b)'s arms to restrain him. Det. Negrón remained in the van, watching to see if the two Hispanic males who had left the truck would return; the two males were ultimately not seen again. § 87(2)(b) was successfully handcuffed by either Sgt. Healy or Det. Greiner after about ten to twenty seconds.

Another vehicle from Det. Negrón's field team arrived but he did not recall which one, though he noted that at some point after § 87(2)(b) was handcuffed, the prisoner van responded. § 87(2)(b) handcuffed and standing outside, continued acting violently by attempting to flee, twisting his body, and kicking the unmarked vehicle that had responded.

§ 87(2)(b) was placed in one of the field teams' vehicles while Sgt. Healy and Det. Greiner returned to the black Dodge Caravan with Det. Negrón remaining in the driver's seat. Accompanied by the ESU truck, Det. Negrón drove to the 66th Precinct stationhouse while § 87(2)(b) was transported in another vehicle that Det. Negrón did not recall.

Det. Negron parked his vehicle in front of the stationhouse and immediately went inside to use the bathroom. Afterwards, he resumed patrol. He did not see § 87(2)(b) and did not know his whereabouts.

Subject Officer: DET. MATTHEW DEL ROSARIO

Det. Del Rosario is a § 87(2)(b)-old Hispanic male who § 87(2)(b) has brown hair and brown eyes. On August 31, 2010, he was on-duty from 1:00pm to 9:33pm, assigned to the chase car in buy and bust operations with Det. Lugo in an unmarked black Toyota Camry and in plainclothes.

Memo Book

On August 31, 2010, at 2:30pm a white Rogue was stopped with three Hispanic males as occupants. § 87(2)(b) was under arrest for § 87(2)(b). § 87(2)(b) resisted at the time of his arrest by pushing off officers and trying to walk away while cuffed (encl F17-18).

CCRB Testimony

Det. Del Rosario was interviewed at the CCRB on March 11, 2011 (encl F19-21). § 87(2)(g)

Det. Del Rosario and Det. Lugo were in an unmarked Toyota Camry, driving in the vicinity of Fort Hamilton Parkway and 60th Street. Driving immediately in front of them was a white-colored Rogue, occupied by two Hispanic males and § 87(2)(b). Det. Del Rosario smelled marijuana emanating from that vehicle, and he followed them until they found an opportune time to stop them. Det. Greiner, in another vehicle, was made aware of this situation over the radio but Det. Del Rosario did not recall who informed him or who he was with. After less than five minutes, the white Rogue parked in front of a fire hydrant, the two unidentified Hispanic males exited and walked toward a deli across the street. Det. Del Rosario parked and “gave them a lot of space” in order to avoid the civilians noticing them.

Det. Del Rosario informed his team over the radio that he was going to follow the two Hispanic males on foot. He, along with Det. Lugo, passed the white Rogue as he followed the pair and then he heard a commotion behind him. Before he reached the two males, Det. Del Rosario turned around and saw § 87(2)(b) attempting to flee from Det. Greiner, who had managed to grab his arm to prevent him from doing so. Det. Greiner “tackled” § 87(2)(b) placing him on the street but Det. Del Rosario could not see how exactly this was done because the white Rogue obstructed his view. Det. Del Rosario did not see or recall seeing any other officers with Det. Greiner at this time. Det. Del Rosario ran over to assist Det. Greiner; he was no longer aware of Det. Lugo’s whereabouts at this time.

When Det. Del Rosario reached Det. Greiner, § 87(2)(b) was already handcuffed, lying on the street. He did not recall if any officer assisted Det. Greiner in doing so. Det. Del Rosario and Det. Greiner helped § 87(2)(b) stand up and § 87(2)(b) tried to flee as he twisted his body away from the officers. In response, both officers held onto § 87(2)(b)’s arms as they stood behind the white Rogue to prevent him from leaving. As this was happening, § 87(2)(b) cursed at the officers and made statements to the effect of “cop hate talk.” By this time, Sgt. Healy was present on the scene, but Det. Del Rosario did not recall what he was doing. Other than holding § 87(2)(b)’s arms, Det. Del Rosario made no physical gestures or contact with other parts of his body. After § 87(2)(b) was handcuffed, Det. Greiner conducted an immediate search of § 87(2)(b)’s pockets and frisked his waistband, with Det. Greiner placing his hands into his pockets,

but nothing was recovered. Det. Del Rosario stated that § 87(2)(b) was not searched before he was handcuffed because § 87(2)(b) was attempting to flee.

Det. Del Rosario told § 87(2)(b) “Calm down...it’s just marijuana...take it easy.” An officer whom Det. Del Rosario did not recall had informed him that marijuana was recovered but he did not recall where it was found. § 87(2)(b) made no attempt to strike Det. Del Rosario, and Det. Del Rosario did not see § 87(2)(b) try to strike any officer.

Det. Cyrus and Det. Farella arrived at the scene in separate vehicles a few minutes after § 87(2)(b) was handcuffed. Det. Farella attempted to verbally calm down § 87(2)(b) with Det. Del Rosario. Det. Del Rosario did not recall Det. Cyrus’ particular actions, other than standing by them. It had been initially intended for § 87(2)(b) to be placed in the prisoner van. However, as § 87(2)(b) was “acting crazy,” which Det. Del Rosario believed to be unusual for a marijuana offense, § 87(2)(b) was placed in the back seat of an unmarked car so an officer could maintain a close watch on him. Det. Del Rosario did not recall which car § 87(2)(b) was placed in, which was done approximately five minutes after he was handcuffed.

The two unidentified Hispanic males walked back towards the vehicle, and Det. Del Rosario instructed them to stand back on the sidewalk. One of the males told him that the white Rogue was his car, and Det. Del Rosario told him to wait until “everything’s sorted out.” Det. Del Rosario did not have further interaction with the two, and he did not recall if any officers interacted with them. He did not recall if they were handcuffed at any point, either.

The officers had no difficulty placing § 87(2)(b) into the patrol car because he had calmed down by this time. Det. Del Rosario denied that § 87(2)(b) was ever placed in a chokehold. § 87(2)(b) sat in the rear passenger seat behind the front passenger while Det. Greiner sat to the left of him. Det. Del Rosario sat in front but did not recall if he was the driver or passenger and did not recall the other officer that sat in front with him. § 87(2)(b) was calm and made no violent gestures, such as kicking, banging his head, or attempting to damage the patrol car. However, § 87(2)(b) began fidgeting into the back of his pants while still rear-cuffed. Det. Greiner held onto § 87(2)(b)’s left arm and told him to stop moving. Det. Greiner also prevented § 87(2)(b) from leaning back on the seat as he held onto his arm in order to see his hands. Det. Del Rosario did not see Det. Greiner touch any other parts of § 87(2)(b)’s body. He denied striking § 87(2)(b) and denied seeing any officer doing the same.

As they traveled to the 66th Precinct stationhouse, Det. Del Rosario told § 87(2)(b) that if he “had anything else” he should let them know. He added to § 87(2)(b) that he would be searched further once they arrived at the stationhouse, and that he should forfeit any contraband now because “it would look better on his behalf.” During this time, Det. Greiner and the other officer were also making statements to that effect to § 87(2)(b).

The officers and § 87(2)(b) exited the patrol car in the rear parking lot of the stationhouse, and before they entered the back door entrance, § 87(2)(b) told the officers to stop because he had “something” and wanted to get it out. While handcuffed, § 87(2)(b) reached into the back of his pants, pulled out an amount of heroin Det. Del Rosario did not recall, and dropped it to the ground. An officer from his team whom Det. Del Rosario did not recall picked up the heroin. This occurred in the presence of Det. Greiner but Det. Del Rosario did not recall if other officers were present, though he affirmed about four to six officers from his team were there. After officers from his team brought § 87(2)(b) into the stationhouse, Det. Del Rosario left without

entering the building. He denied that an officer pointed OC spray at § 87(2)(b) Det. Del Rosario was unaware if § 87(2)(b) was strip-searched at the stationhouse.

Subject Officer: DET. DEGNY LUGO

Det. Lugo is a § 87(2)(b)-old Hispanic male who § 87(2)(b) has brown hair and brown eyes. On August 31, 2010, he was on-duty from 12:27pm to 9:00pm, assigned to the narcotics enforcement in plainclothes and in an unmarked black Toyota Camry with Det. Del Rosario.

Memo Book

On August 31, 2010, at 2:30pm, Det. Cyrus arrested § 87(2)(b) for § 87(2)(b). At 2:50pm, he arrived at the 66th Precinct stationhouse. At 3:10pm, he resumed patrol (encl F22-23).

CCRB Testimony

Det. Lugo was interviewed at the CCRB on May 18, 2011 (encl. F24-26). § 87(2)(g)

Det. Lugo and Det. Del Rosario were in their vehicle on 60th Street approaching 8th Avenue when they observed Det. Greiner's vehicle stopped on 8th Avenue between 60th Street and 59th Street and Det. Greiner removing § 87(2)(b) from a SUV. From that same vehicle, two unidentified Hispanic males in their 20s who stood approximately 5'7" to 5'11" had exited and began walking towards 60th Street on 8th Avenue. Det. Lugo only observed Det. Greiner approaching § 87(2)(b) and he did not recall if he was notified over the radio prior to his observation. Det. Greiner's partner, Det. Negron, was not seen during this incident.

Det. Lugo and Det. Del Rosario approached the two males and Det. Del Rosario "asked them some questions," but Det. Lugo did not recall what was asked. He believed that Det. Del Rosario may have acquired their IDs during this time.

Within "seconds" after approaching the two males, § 87(2)(b) who was about four to five feet away from Det. Greiner, attempted to flee, but Det. Greiner grabbed onto his arms and attempted to handcuff him. § 87(2)(b) resisted by pushing Det. Greiner away, kicking and punching towards him, and trying to run as he was handcuffed. Det. Greiner was not struck by § 87(2)(b) during this time. Det. Lugo ran over to Det. Greiner and § 87(2)(b) who were approximately 20 feet away. He did not recall Det. Del Rosario's whereabouts at this time, but he believed he may have still been with the two males. By the time Det. Lugo reached Det. Greiner, § 87(2)(b) was handcuffed by Det. Greiner without any assistance as they were in the middle of the street; Det. Lugo did not recall if § 87(2)(b) was ever placed on the ground. After he was handcuffed, Det. Greiner, followed by Det. Lugo, brought § 87(2)(b) to the back of the SUV. § 87(2)(b) continued to try to flee by pulling away and throwing his shoulders around; Det. Greiner held onto the chain of § 87(2)(b)'s handcuffs to prevent him from fleeing. Det. Greiner patted § 87(2)(b)'s waistband area and pants pockets for the officers' safety, but § 87(2)(b) continued to twist his body and attempt to flee. Det. Lugo denied seeing Det. Greiner extend § 87(2)(b)'s waistband, and he did not recall whether any items were recovered from the frisk.

Approximately 10-15 minutes after § 87(2)(b) was initially approached and after he was handcuffed, Sgt. Healy and Det. Cyrus arrived together in a black Dodge and spoke with the

officers in regards to the incident, but Det. Lugo did not recall what was said. Because of § 87(2)(b)'s uncooperative behavior, Sgt. Healy requested ESU to respond, and an ESU unit arrived within five to ten minutes. During this time, § 87(2)(b) still acted "aggressive"; Det. Lugo stated during his interview, § 87(2)(b) did not want to be touched, or held, or handcuffed...he wanted to get away from us." Det. Lugo did not recall if any other officer held onto § 87(2)(b). Upon ESU's arrival, § 87(2)(b) calmed down "a little."

§ 87(2)(b) resisted Det. Greiner's attempt to place him inside the back of Det. Lugo's car by moving his body to the side and pushing against Det. Greiner. Det. Lugo sat in the driver's seat while Det. Greiner sat behind him in the rear passenger seat and § 87(2)(b) sat in the back with Det. Greiner; no one sat in the front passenger seat. § 87(2)(b) was never alone with Det. Greiner inside the car. Det. Lugo did not know Det. Del Rosario's whereabouts. While inside the car, § 87(2)(b) moved around, pushed against the door in order to get out, and pushed Det. Greiner by giving "shoulder checks." En route to the 66th Precinct stationhouse, Det. Greiner held onto § 87(2)(b)'s rear cuffs to limit his movement and told him to calm down. Det. Lugo denied that Det. Greiner held or touched § 87(2)(b) in any other manner, and he denied seeing Det. Greiner strike or punch § 87(2)(b). He did not recall any further conversations with § 87(2)(b) or any statements by the prisoner during this time.

Det. Lugo parked the car in the rear parking lot of the stationhouse while the rest of his team parked in the same lot or in front of the stationhouse, but Det. Lugo did not recall which vehicles ultimately parked in either location. Upon exiting the vehicle, Det. Lugo brought § 87(2)(b) to Det. Farella and Det. Angilletta in the prisoner van. He noted that some other members of his team were present but he did not recall specifically who. Det. Lugo denied drawing and pointing OC spray towards § 87(2)(b) and he denied seeing any officer do the same. Det. Lugo did not recall if § 87(2)(b) was brought inside the 66th Precinct stationhouse, and he was only aware that § 87(2)(b) was strip-searched after reviewing the arrest paperwork. He did not witness the strip-search, he did not recall which stationhouse it was conducted in, and he did not know the officer or officers that conducted it.

Det. Lugo did not know the circumstances that led Det. Greiner to approach § 87(2)(b). He did not know how or where the marijuana and heroin were recovered.

Subject Officer: DET. SEAN CYRUS

Det. Cyrus is a § 87(2)(b)-old black male who § 87(2)(b) has black hair and brown eyes. On August 31, 2010, he was on-duty from 12:00pm to 8:00pm, assigned to narcotics enforcement with Sgt. Michael Healy in plainclothes and in an unmarked minivan.

Memo Book

On August 31, 2010, at 2:30pm, § 87(2)(b) was under arrest at the corner of 8th Avenue and 60th Street by Det. Greiner. At 2:40pm, Det. Cyrus arrived at the corner of 8th Avenue and 60th Street (encl F27-30).

Field Test Reports

On August 31, 2010, at 2:30pm, at the corner of 8th Avenue and 60th Street in Brooklyn, Det. Cyrus observed § 87(2)(b) in possession of 50 glassine envelopes containing heroin, which were recovered from his person. Det. Cyrus also observed § 87(2)(b) in possession of one ziplock bag of marijuana, which was recovered from "the floor where § 87(2)(b) was observed drop[ping] it" (encl. F31-32).

Felony Narcotics Possession Fact Sheet

This document reiterates the heroin and marijuana recovered from § 87(2)(b) and provides additional information. The basis for the stop and search of § 87(2)(b) was that he was “parked at a fire hydrant.” Det. Greiner recovered the heroin from § 87(2)(b)’s person. Upon his arrest, § 87(2)(b) said to Det. Greiner, “I just had weed. I throw it on the floor” (encl. F33)

Arrest Report

According to these documents, § 87(2)(b) was observed inside a vehicle that was parked in front of a fire hydrant. Upon the officers’ approach of the vehicle, § 87(2)(b) exited the vehicle and threw marijuana to the floor. Pursuant to a search incident to a lawful arrest, § 87(2)(b) was in possession of 50 glassines of heroin stamped with a picture of three balloons. § 87(2)(b) violently resisted arrest by kicking and punching and attempting to flee the location. His cell phone had no International Mobile Equipment Identity (IMEI) number, and he did not know his social security number. § 87(2)(b) was strip-searched as authorized by Sgt. Healy and noted in command log page 377 of the 76th Precinct (encl. F34-36).

Criminal Court Complaint

Det. Greiner informed Det. Cyrus that he observed § 87(2)(b) in possession of marijuana that was visible to passerbys, and that he recovered said marijuana from the ground where he saw § 87(2)(b) throw it. § 87(2)(b) intentionally attempted to prevent Det. Greiner from arresting him by flailing his arms, kicking and punching at Det. Greiner, attempting to flee, and refusing to be handcuffed. Det. Greiner also recovered 50 glassine envelopes containing heroin from § 87(2)(b)’s person (encl. F37-38).

CCRB Testimony

Det. Cyrus was interviewed at the CCRB on January 13, 2011 (encl. F39-40). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Det. Cyrus was radioed by a member of his team to respond to 8th Avenue and 60th Street for an individual under arrest. Det. Cyrus, who was alone at the time, was approximately a 10-15 minutes drive away from the location; he did not recall his exact location at the time of the call.

Upon Det. Cyrus’ arrival, § 87(2)(b) was already handcuffed and sitting next to Det. Greiner in the rear passenger seat of an unmarked car. Det. Cyrus did not see what Det. Greiner and § 87(2)(b) were doing inside the car, or if they were speaking to each other. Sgt. Healy, Det. Negron and at least two other members of his team who he did not recall were present at the location. Sgt. Healy was standing outside but he did not recall what he was doing. There was another police vehicle that did not belong to his team, and Det. Cyrus believed it may have been an ESU truck but he did not see or know those officers’ interactions during this incident.

Det. Cyrus approached the car in which § 87(2)(b) was sitting but he did not speak to him. § 87(2)(b) who did not speak, appeared “normal” at the time and Det. Cyrus denied hearing any officer making statements to calm him down. Det. Cyrus denied seeing an officer strike § 87(2)(b) or put him in a chokehold, and he denied doing the same. He did not see § 87(2)(b) with any signs of physical injury and he did not hear him complain of any injury, either.

The officers drove to the 66th Precinct stationhouse at 2:50pm, with Det. Cyrus following in his car. Det. Cyrus denied transporting § 87(2)(b) or any prisoners and he did not recall how § 87(2)(b) was taken to the stationhouse. He was unsure if another police vehicle other than his and the vehicle transporting § 87(2)(b) had traveled to the stationhouse. He denied seeing any officer speak with § 87(2)(b) or point OC spray towards him in the parking lot of the stationhouse.

Det. Cyrus entered the stationhouse and immediately went to the bathroom. Upon exiting, § 87(2)(b) was already logged in at the front desk, but did not see this occur. Sgt. Healy was present, standing behind the front desk. He did not observe or interact with § 87(2)(b) while he was in the holding cell or at any point during this incident. At the 66th Precinct stationhouse, Det. Greiner told Det. Cyrus that he saw § 87(2)(b) parked in front of a fire hydrant, smoking marijuana inside the vehicle. Officers approached and § 87(2)(b) exited the car and resisted arrest, however Det. Cyrus was unaware of how exactly § 87(2)(b) resisted. Det. Cyrus mentioned an unidentified individual was involved as well, but he did not recall this individual's exact involvement in the incident and did not see him or her upon his arrival. He did not observe and did not know if § 87(2)(b) was strip-searched in the stationhouse.

During the interview, Det. Cyrus was shown a copy of a field test report, confirming that § 87(2)(b) was in possession of heroin; § 87(2)(b)'s arrest report was not shown. Det. Cyrus stated that during the incident, at the 66th Precinct stationhouse, Det. Greiner informed him that § 87(2)(b) possessed heroin but he did not recall how or where it was recovered.

Five minutes after arriving at the stationhouse, Det. Cyrus resumed patrol and did not return to that stationhouse. Det. Cyrus denied that any member of his team mentioned of an incident involving a verbal or physical altercation with § 87(2)(b) that may have resulted in an officer pointing his OC spray towards him.

Subject Officer: DET. ALBERTO ANGILLETTA

Det. Angilletta is a § 87(2)(b)-old white male who § 87(2)(b) has brown hair and brown eyes. On August 31, 2010, he was on-duty from 1:00pm to 9:00pm, assigned to an unmarked prisoner van with Det. Farella in plainclothes.

Memo Book

Det. Angilletta was unable to locate his memo book in regards to this incident, as confirmed by Lt. Jennifer Silva of the DAO.

CCRB Testimony

Det. Angilletta was interviewed at the CCRB on March 11, 2011 (encl. F41-42). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Det. Angilletta and Det. Farella received a radio communication to respond to 8th Avenue and 60th Street in regards to an arrest. Det. Cyrus, alone and in another unmarked minivan, followed them to the location as well. Upon their arrival, Det. Angilletta saw members of his field team that he did not recall, save for Sgt. Healy and Det. Greiner, and an ESU truck. He did not see any ESU officers.

Det. Angilletta exited the van and approached the scene. § 87(2)(b) who was handcuffed and appeared calm, was sitting in the backseat of an unmarked black Toyota Camry, with Det. Greiner sitting next to him. Det. Angilletta did not see any further actions by § 87(2)(b) or Det. Greiner other than their sitting inside the car. He did not recall if any officers were sitting in the front seats of that car. Det. Angilletta did not see how § 87(2)(b) was handcuffed and denied searching him at that location. He denied seeing any officer physically restrain or strike § 87(2)(b) at any point. After less than five minutes, Sgt. Healy told Det. Angilletta to go to the 66th Precinct stationhouse and to wait for further instructions. Before that moment, Det. Angilletta was unaware of Det. Farella's whereabouts. He also had no physical interaction with § 87(2)(b).

Det. Angilletta and Det. Farella immediately drove to the 66th Precinct stationhouse by themselves, parking in the rear lot. He did not know if members of his field team parked at the same location as well. While in the parking lot, Det. Greiner, alone, handed control of § 87(2)(b) to Det. Angilletta, who did not know who transported the prisoner. No officer informed Det. Angilletta of the circumstances that led to § 87(2)(b)'s arrest. Det. Angilletta denied pointing OC spray or threatening to use it against § 87(2)(b) and denied seeing any officer doing the same.

§ 87(2)(b) was brought into the stationhouse by Det. Angilletta, where Sgt. Healy instructed him to strip search the prisoner but he was not given a reason for doing so. Det. Angilletta and Det. Farella conducted the strip search of § 87(2)(b) who was cooperative with them. The strip search did not recover anything and Det. Angilletta was unaware of any contraband recovered from § 87(2)(b) at any point during this incident. Afterwards, § 87(2)(b) was transported to the 76th Precinct stationhouse for arrest processing.

§ 87(2)(b) did not appear injured and he did not complain of any injuries. Det. Angilletta denied using or hearing any officer use profanity towards § 87(2)(b) including the words "fuck" and "bullshit."

Subject Officer: DET. PAUL FARELLA

Det. Farella is a § 87(2)(b)-old white male who § 87(2)(b) has brown hair and blue eyes. On August 31, 2010, he was on-duty from 11:27am to 8:00pm, assigned to the prisoner van, black and unmarked, with Det. Angilletta in plainclothes.

Memo Book

On August 31, 2010, at 2:30pm, § 87(2)(b) was under arrest by Det. Cyrus at 8th Avenue and 60th Street (encl. F43-45).

CCRB Testimony

Det. Farella was interviewed at the CCRB on March 10, 2011 (encl. F46-47). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Upon arriving at the location, Det. Farella saw two unmarked vehicles from his field team, a black Camry and a black minivan. He did not recall the officers that were present, except for Sgt. Healy and ESU officers, and he denied seeing § 87(2)(b). He denied seeing any officer strike, place in a choke hold, or search § 87(2)(b) and he denied having any physical or verbal

interaction with him at this time. He did not recall if he or Det. Angilletta exited the van at this point.

Det. Farella and Det. Angilletta left the location after about five minutes to travel to the 66th Precinct stationhouse. At an area at the stationhouse that Det. Farella did not recall, Det. Greiner, with Sgt. Healy standing by, handed control of § 87(2)(b) to him and Det. Angilletta. § 87(2)(b) did not appear injured, and he did not complain of any injuries. Sgt. Healy instructed Det. Farella to strip-search § 87(2)(b) and he did so along with Det. Angilletta. The strip-search produced negative results, and § 87(2)(b) was placed into a holding cell.

Det. Farella only spoke with § 87(2)(b) at the stationhouse to acquire his pedigree information, and he did not have further interaction with him. He denied that any officer informed him of the circumstances that led to § 87(2)(b)'s arrest, and he denied knowledge of an incident with § 87(2)(b) where an officer threatened to use OC spray against him outside the stationhouse. Det. Farella denied using profanity towards § 87(2)(b) and denied using the word “fuck” or “bullshit.”

NYPD Documents

Command Log

The 66th Precinct command log indicates on page 368 that on August 31, 2010, at 2:50pm, § 87(2)(b) was brought into the stationhouse, under arrest by Det. Cyrus for PL 221.10 and PL 220.16. § 87(2)(b)'s physical and mental condition was noted as normal, and he was transported to the 76th Precinct stationhouse at 3:05pm (encl. G1).

The 76th Precinct command log indicates on page 377 that on August 31, 2010, at 3:05pm, § 87(2)(b) was brought into the stationhouse. A strip-search was authorized by Sgt. Healy, as noted (encl. G2).

Property Vouchers

Voucher R561420 shows that 50 glassine envelopes of heroin “stamped with red balloon” and one ziplock bag of marijuana were recovered by Det. Greiner and vouchered as arrest evidence (encl. G3-5).

Tactical Plan

Sgt. Healy and Det. Cyrus were assigned to a black Dodge, with the latter assigned as the arresting officer. Det. Greiner and Det. Negron were assigned to a grey Dodge. Det. Lugo and Det. Del Rosario were assigned to a black Nissan. Det. Angilletta and Det. Farella were assigned to the prisoner van, which was a black Ford (encl. G6).

Stop, Question, and Frisk Report

The computerized Stop, Question, and Frisk log had no results for § 87(2)(b) or an individual at or near the time or place of this incident (encl. G11).

ESU Report

Lt. Darrin Owens of ESU ICO office did not find any ESU report in regards to this incident (encl. K5).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of March 28, 2011, with regard to the incident (encl. J3).

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- ## Civilians CCRB History

- § 87(2)(b) has filed the following CCRB complaints (encl. B1):

- § 87(2)(b)

- § 87(2)(b) was a victim in CCRB complaint 2§ 87(2)(b)

Subject Officers CCRB History

- Sgt. Healy has been a member of the service for 18 years and there are no substantiated CCRB allegations against him (encl. A1).
- Det. Greiner has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. A2-3).

Conclusion

Identification of Subject Officers

Sgt. Healy and Det. Greiner were identified by matching their physical attributes and their testimonies with the physical descriptions and testimony provided by § 87(2)(b)

§ 87(2)(g)

The subject officer that § 87(2)(b) alleged to have used discourteous language and threatened to use force against him while at the 66th Precinct stationhouse remains unidentified. § 87(2)(b)

described this officer as a husky, 30-to-36-year-old white male in plainclothes who stood 6'1", had a Caesar hairstyle and a large nose. No member of the field team particularly matched this description, and § 87(2)(b) was unsure if this officer was present when he was handcuffed.

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority - At 8th Avenue and 60th Street in Brooklyn, Sgt. Michael Healy authorized the stop of § 87(2)(b) and an individual.

§ 87(2)(b) stated that he was seated in the backseat of a white SUV while § 87(2)(b) and his friend were seated in the driver's seat and front passenger seat when they parked in front of a fire hydrant. § 87(2)(b) denied having any knowledge of the presence or use of marijuana when he was arrested.

§ 87(2)(g)

According to Det. Greiner, who was with Sgt. Healy and Det. Negron, he smelled marijuana and saw smoke emanating from the rear passenger window of the vehicle (occupied by § 87(2)(b) and his friend) driving in front of his unmarked minivan. Det. Greiner followed the vehicle, which ultimately parked in front of a fire hydrant, and Det. Greiner parked one car length behind to initiate a vehicle stop. Det. Greiner then went on to say that Sgt. Healy picked up an object resembling a cigarette that § 87(2)(b) had flicked onto the street, which turned out to be marijuana. However, according to Sgt. Healy, he and his officers had already parked on the sidewalk when § 87(2)(b)'s vehicle subsequently parked in front of them, and the smell of marijuana emanated from the opened windows of the vehicle, though Sgt. Healy did not see anyone smoking marijuana. Upon Sgt. Healy's approach, § 87(2)(b) threw a ziplock bag of marijuana into the SUV and was recovered after a car search. The third officer in the unmarked van, Det. Negron, stated that they received a call over the radio of males smoking marijuana in a vehicle at the incident location. A description of the vehicle was given but he did not recall it and no physical descriptions of the males were given. Det. Negron parked approximately 15-20 car lengths behind § 87(2)(b)'s vehicle, then Sgt. Healy and Det. Greiner exited the van and approached as Det. Negron remained inside the vehicle.

Det. Del Rosario and his partner, Det. Lugo, provided more alternate narratives of their initial observations. Det. Del Rosario testified that as he drove with Det. Lugo, he smelled marijuana emanating from § 87(2)(b)'s vehicle, which was driving in front of them. He followed until the civilians parked in front of a fire hydrant; Det. Greiner was then made aware of this situation over the radio. Ultimately, Det. Del Rosario was only informed by Sgt. Healy of the actual presence of marijuana from an unspecified location after § 87(2)(b) was handcuffed. Lastly, according to Det. Lugo, he and Det. Del Rosario were driving when they observed Det. Greiner removing § 87(2)(b) from a vehicle. From that same vehicle, § 87(2)(b) and his friend exited, and Det. Lugo and Det. Del Rosario approached to question them.

It is undisputed that § 87(2)(b) was in the backseat of an SUV that had parked in front of a fire hydrant. § 87(2)(g)

it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B: Discourtesy - At 8th Avenue and 60th Street in Brooklyn, Sgt. Michael Healy spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(b) stated that after asking why he was being arrested, Sgt. Healy said, “Shut the fuck up.” However, Sgt. Healy denied using profanity (including the word “fuck”) towards § 87(2)(b)

§ 87(2)(g) it is therefore recommended that **Allegation B** be closed as **Unsubstantiated**.

Allegation C: Abuse of Authority – At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner searched § 87(2)(b)

According to § 87(2)(b) after he was handcuffed Det. Greiner pulled his front and back waistband horizontally, extending it so that Det. Greiner could see his genitals and buttocks. While holding the waistband with one hand, Det. Greiner reached in § 87(2)(b)'s pants, with two fingers touching and swiping between § 87(2)(b)'s buttocks. § 87(2)(g)

Patrol Guide section 208-05(A), which outlines search guidelines under arrest situations, states that a “frisk, performed primarily to ensure the personal safety of the arresting officer, is a methodical external body examination of the arrested person conducted immediately after apprehension to find weapons, evidence, or contraband. The frisk should be conducted before or immediately after the subject is rear handcuffed, depending upon particular circumstances, temperament of the subject, and escape potential. A thorough external body examination is made by sliding the hand over the subject's body, feeling for weapons or other objects, with special attention to the waistband, armpit, collar and groin areas. If an unusual object is detected, the officer will reach into or under the clothing to remove it” (encl. i1).

§ 87(2)(g)

It is thus recommended that **Allegation C** be closed as **Unsubstantiated**.

Allegation D: Force - At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner used a chokehold against § 87(2)(b)

§ 87(2)(b) stated that Det. Greiner placed him into a headlock with Det. Greiner's right arm wrapped around his neck. § 87(2)(b)'s head was then brought downwards with his torso parallel to the ground. Det. Greiner held onto § 87(2)(b) in this manner for approximately 30 seconds, at which point § 87(2)(b) began to choke and his vision blurred.

Det. Greiner denied wrapping his arm around § 87(2)(b)'s neck in a chokehold, and denied seeing any officer doing the same. Additionally, no officer admitted seeing Det. Greiner use a chokehold against § 87(2)(b). Furthermore, § 87(2)(b) declined medical treatment, § 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegation D** be closed as **Unsubstantiated**.

Allegation E: Abuse of Authority – At 8th Avenue and 60th Street in Brooklyn, officers searched § 87(2)(b) and an individual.

§ 87(2)(b) was informed by § 87(2)(b) and his friend over the telephone that officers extended their waistbands and touched between their buttocks during this incident.

§ 87(2)(b) did not know § 87(2)(b)'s or § 87(2)(b)'s friend's actual name or contact information, and no police records of these two were found. As they were unable to be contacted, it is recommended that **Allegation E** be closed as **Victims Unidentified**.

Allegation F: Discourtesy - At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner spoke obscenely and rudely to § 87(2)(b)

Allegation G: Force - At 8th Avenue and 60th Street in Brooklyn, Det. Christopher Greiner used physical force against § 87(2)(b)

According to § 87(2)(b) while sitting in the backseat of an unmarked car, Det. Greiner told § 87(2)(b) "Stop acting like a fucking animal." Det. Greiner punched § 87(2)(b)'s right side rib twice and then three more times after § 87(2)(b) said to Det. Greiner that he "punch[ed] like a little bitch" and that he "hit like a little girl."

Det. Greiner denied using any profanity towards § 87(2)(b) and he denied punching or striking § 87(2)(b) at any time. No officer admitted to hearing or observing an officer use profanity or strike § 87(2)(b). § 87(2)(g) it is therefore recommended that **Allegations F and G** be closed as **Unsubstantiated**.

Allegation H: Discourtesy – At the 66th Precinct stationhouse, an officer spoke obscenely and rudely to § 87(2)(b)

Allegation I: Abuse of Authority – At the 66th Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force.

According to § 87(2)(b) while outside in the rear parking lot of the stationhouse, PO6 walked up to § 87(2)(b) and said, "You better not be bullshitting me, because I'll fucking mace you right here." The officer then grabbed § 87(2)(b)'s front shirt collar with one hand while removing and pointing a can of OC spray toward § 87(2)(b)'s face. § 87(2)(g)

§ 87(2)(b), it is recommended that **Allegations H and I** be closed as **Officer Unidentified**.

Allegation J Abuse of Authority – At the 66th Precinct stationhouse, Sgt. Michael Healy authorized the strip-search of § 87(2)(b)

It is undisputed that § 87(2)(b) was strip-searched at the 66th Precinct stationhouse, as per Sgt. Healy's instructions.

Patrol Guide section 208-05(C) states, "A strip search may only be conducted when the arresting officer reasonably suspects that weapons, contraband or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods. A supervisor will authorize a strip search only when [there is] reasonable suspicion, beyond probable cause for the arrest, that the individual is concealing contraband or a weapon. Other factors that should be considered in determining whether an appropriate basis exists for a

strip search include the nature of the crime (i.e., serious violent felony), arrest circumstances...acts of violence” (encl. i1-2).

§ 87(2)(g)

According to the officers, from the onset of their interaction with § 87(2)(b) he behaved violently by resisting arrest and by attempting to flee. Det. Greiner stated that after § 87(2)(b) was handcuffed, he frisked him, but he was unable to conduct a search at that time because he continued to try to flee. According to additional officer testimonies, in addition to § 87(2)(b)'s continued attempts to flee, § 87(2)(b) was “combative” and struggled after he was handcuffed, behavior that led to the sergeant’s decision to request ESU’s assistance. § 87(2)(g)

it is therefore recommended that
Allegation J be Exonerated.

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date